

Present:

Mr. Justice Md. Kamrul Hossain Mollah

Civil Revision No.1723 of 2022

IN THE MATTER OF:

An application under Section 115 (1) of the Code of Civil Procedure

- AND -

IN THE MATTER OF:

Md. Shajahan Shikder and others

... Defendant-Petitioners

-Versus –

Hazi Md. Ayub Ali Shikder and others

...Plaintiff-Opposite Parties

Mr. Tapan Kumar Bepary, Advocate

....For the petitioners

Mr. Nadim Ahmed, Advocate

...For the Opposite Parties

Heard on 26.07.2023, 13.08.2023
and Judgment on 14.08.2023

Md. Kamrul Hossain Mollah, J:

On an application filed by the petitioner, under section 115(4) of the Code of Civil Procedure, leave was granted to file the revisional application and this Rule was issued calling upon the opposite party No.1 to show cause as to why the impugned judgment and order dated 07.02.2022 passed by the learned Senior District Judge, Patuakhali in Civil Revision No.42 of 2021 rejecting the revision and thereby affirming the order No.39 dated 19.09.2021 passed by the learned Joint District Judge, 1st

Court, Patuakhali in Title Suit No.85 of 2016, should not be set-aside and/or pass such other or further order or orders as to this Court may seem fit and proper.

At the time of issuance of the Rule this Court stayed the impugned order No.39 dated 19.09.2021 passed by the learned Joint District Judge, 1st Court, Patuakhali in Title Suit No.85 of 2016 for a period of 01(one) month from date.

Facts necessary for disposal of the Rule, in short, are that on 06.06.2016 the opposite party No.1 filed Title Suit No.85 of 2016 in the Court of learned Joint District Judge, 1st Court, Patuakhali against the Defendant /petitioners No.1-3 and others for having partition of $50\frac{1}{4}$ decimals of land as mentioned in the schedule of the plaint. At the same time, in connection of the said land, the opposite party No.1 of the suit filed an application under order 39, rule 1 and 2 with section 151 of the Code of Civil Procedure for temporary injunction and in pursuance of the said application, the trial Court vide order dated 28.06.2016 passed an order of status quo in respect of the suit land, which was extended time to time. On 28.06.2016 the petitioners No.1-3 entered appearance in the suit by filing a joint written statement and at the same time filed a written objection against the application for temporary injunction. In pursuance of the opposite party's No.1 application, as many as 2 consecutive local inspection was held and against both the said inspection reports, the petitioners filed written objections claiming the said inspection reports incorrect, biased, misleading and concocted. On 28.06.2021 the opposite

party No.1 filed an application for passing an order of status-quo ante upon demolishing the petitioners' structures standing upon the suit land claiming that the said structures were built after passing the order of status-quo and against the said application, the petitioners filed written objection on 02.09.2021 by denying all allegations made in the application. The learned Joint District Judge, 1st Court, Patuakhali without considering the petitioner's written objection allowed the opposite party's application for status quo ante upon directing the petitioners to remove the structures standing on the suit land within 30(thirty) days by his order dated 19.09.2021.

Being aggrieved by and dissatisfied with the said order dated 19.09.2021, the petitioners on 19.10.2021 filed Civil Revision No.42 of 2021 before the learned Senior District Judge, Patuakhali.

The learned Senior District Judge, Patuakhali after hearing both the parties disallowed the Civil Revision No.42 of 2021 by his judgment and order dated 07.02.2022 and upheld the order of the trial Court upon rejecting the petitioners' said revisional application.

Being aggrieved by and dissatisfied with the judgment and order dated 07.02.2022 passed by the learned Senior District Judge, Patuakhali in Civil Revision No.42 of 2021, the petitioners filed this revisional application under section 115(4) of the Code of Civil Procedure and obtained the present Rule and stay.

Mr. Tarak Chandra Ray, the learned Advocate for the petitioners submits that both the Courts below committed error of law resulting in an error in the decision occasioning failure of justice in failing to consider that

the property included in S.A. Khatian No.421 corresponding to S.A. plot No.5282/5658 and 5658 is a huge undivided ejmali property quantum of 16.65 acres out of which the opposite party's claim is only $50\frac{1}{4}$ decimals wherein the petitioners' claim is 2.1350 acres and even the plaintiff-opposite party has failed to give specific boundary of his claimed portion and hence his application for status-quo upon an undemarcated vast property without specific boundary being a vague one is not maintainable in the eye of law and hence the impugned judgment and order is liable to be set-aside.

He further submits that the Courts below committed error of law resulting in an error in the decision occasioning failure of justice in failing to consider that in a suit for partition every concern party has equal right to get his saham partitioned and in such a partition suit every concern party has equitable right to make construction at his own risk upon the property remaining in his possession and in the final result if the said partition is given to other's saham, he is bound to give deliver of the said portion with the structures as well and hence during pendency of the suit no party can be or should not be debarred from making construction upon his owned possessed portion at his own risk and hence the impugned order directing the petitioners to remove their structures from their possessed portion being bad in law is liable to be set-aside.

He also submits that the petitioners have been remaining in possession in their portion of the suit land for long about 30 years by digging ponds and by building tin shed structures and other dwelling

houses and all the structures are old aged of about 20 years and they did not make any new construction upon the suit land and hence in the name of status quo ante, the direction upon petitioner's to remove the old aged structures from the suit land being bad in law is liable to be stayed and the petitioners undertake that if their possessed portion along with the standing structures is allotted to opposite party in final decree, then they will surrender the same to the opposite party without any interruption and without considering the said overall aspects of the case the Courts below have committed error of law resulting in an error in the decision occasioning failure of justice.

The learned Advocate lastly submits that the revisional Court below miserably failed to understand the legal and factual aspects of the case and came to erroneous decision by rejecting the petitioners' revisional application going beyond the scope of law and hence the misconceived and illegal judgment and order is liable to be set-aside. Accordingly, he prays for making the Rule absolute.

On the other hand, Mr. Md. Mainul Islam, the learned Advocate appearing for the opposite party No.1 submits that On 28.06.2021 the opposite party No.1 filed an application for passing an order of status-quo ante upon demolishing the petitioners' structures standing upon the suit land claiming that the said structures were built after passing the order of status-quo and against the said application, the petitioners filed written objection on 02.09.2021 by denying all allegations made in the application. The learned Joint District Judge, 1st Court, Patuakhali considering application filed by the opposite party No.1 and the petitioner's written

objection rightly allowed the opposite party's application for status quo ante upon directing the petitioners to remove the structures standing on the suit land within 30(thirty) days by his order dated 19.09.2021. Being aggrieved by and dissatisfied with the said order dated 19.09.2021, the petitioners on 19.10.2021 filed Civil Revision No.42 of 2021 before the learned Senior District Judge, Patuakhali. The learned Senior District Judge, Patuakhali after hearing both the parties rightly disallowed the Civil Revision No.42 of 2021 by his judgment and order dated 07.02.2022 and upheld the order of the trial Court upon rejecting the petitioners' said revisional application, which maintainable in the eye of law. Accordingly he prays for discharging the Rule.

I have perused the revisional application, the impugned judgment and order of the Court's below, the submissions of the learned Advocate for the opposite party No.1 and the submissions of the learned Advocate for the petitioners, the papers and documents as available on the record.

It appears from the record that, the status-quo order dated 28.06.2016 passed by the learned Joint District Judge 1st Court remains in force till now. In view of the application of the opposite party before passing the said status-quo order, by the learned Advocate Commissioner Md. Sumon Chowdhury in the analysis of the results of the local inspection submitted on 13.06.2016, the newly raised 42 X 29 feet structure of house on the west side of the pond in the eastern part of the land in opposition to the north-south longitude and in the north homestead there was no existence of the house or the newly constructed double cow shed measuring 32 X 12 feet on the south-east side. But, after the order of status-quo on 28.06.2016

the learned Advocate Commissioner Md. Harun Or Rashid found the existence of such new establishment in the result of inspection report filed on 01.02.2017. As a result, it is clear to the Court that while the present litigation is ongoing, the petitioners No.1-3 has constructed a new structure as per the description of the local inspection report dated 01.02.2017 in violation of the status-quo order of the Court dated 28.06.2016. In this situation, in order to uphold the dignity of the Court of law and to maintain the effectiveness of the order dated 28.06.2016, the petitioner's No.1-3 have committed no error of law or fact in ordering the removal of the structures constructed in defiance of the order of the Court. As a result, the order given by the learned trial Court was considered as a just order, so the decision was taken to uphold and enforce the order.

Considering the above facts and circumstances, I find that the Senior District Judge, Patuakhali rightly passed the judgment and order dated 07.02.2022 in Civil Revision No.42 of 2021 rejecting the revision and thereby affirming the order No.39 dated 19.09.2021 passed by the learned Joint District Judge, 1st Court, Patuakhali in Title Suit No.85 of 2016 passing an order of status-quo ante upon directing the petitioners to vacate the suit land is maintainable in the eye of law and I do not find any substance to interference into the said judgment and order and I find substance in the submission of the learned Advocate for the opposite party No.1.

Accordingly, I do not find any merit in the Rule.

In the Result, the Rule is discharged.

The judgment and order dated 07.02.2022 passed by the learned Senior District Judge, Patuakhali in Civil Revision No.42 of 2021 rejecting the revision is hereby upheld and confirmed.

The order of stay granted earlier by this Court is hereby recalled and vacated.

The concerned lower Court is hereby directed to dispose this case as early as possible within 1 (one) year from the date of the receipt of this judgment and order in accordance with law.

Let a copy of this judgment and order be communicated to the concerned Court below at once.

Md. Anamul Hoque Parvej
Bench Officer